

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 736

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 34-903, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE SECRETARY OF STATE TO PRESCRIBE FORM AND CONTENTS OF ALL BALLOTS AND RELATED DOCUMENTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-903, Idaho Code, be, and the same is hereby amended to read as follows:

34-903. SECRETARY OF STATE TO PRESCRIBE FORM AND CONTENTS OF ALL BALLOTS AND RELATED DOCUMENTS. (1) The secretary of state shall, in a manner consistent with the election laws of this state, prescribe the form for all ballots, absentee ballots, diagrams, sample ballots, voting machine labels or booklets, certificates, notices, declarations of candidacy, affidavits of all types, lists, applications, poll books, tally sheets, registers, rosters, statements, and abstracts if required by the election laws of this state.

(2) The secretary of state shall prescribe the arrangement of the matter to be printed on each kind of ballot and label, including:

(a) The placement and listing of all offices, candidates, and issues upon which voting is statewide, which shall be uniform throughout the state; and

(b) The listing of all other candidates required to file with him, and the order of listing all offices, candidates, and issues upon which voting is not statewide.

(3) The names of candidates for legislative or special district offices shall be printed only on the ballots furnished to voters of such district.

(4) (a) The order of the names of candidates that appear on election ballots for federal, state, county, and ~~city~~ local offices shall be rotated in the manner determined by the secretary of state for any political entity whose number of registered voters at the last general election exceeded twenty-five thousand (25,000).

~~(b) The names of candidates that appear on election ballots for other offices shall be rotated in the manner determined by the secretary of state for any political entity whose number of registered voters at the last general election exceeds one hundred thousand (100,000).~~

~~(c) (b)~~ The order of names of candidates for office in all other elections shall be determined by applying the first letter of each candidate's last name to a random alphabet selected prior to each election by the secretary of state.

(5) No candidate's name may appear on a ballot for more than one (1) partisan office or one (1) judicial office, except that a candidate for precinct committeeman may seek one (1) additional office upon the same ballot. The

1 provisions of this subsection shall not apply to the election of electors of
2 president and vice president of the United States.

3 SECTION 2. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.